

Railway Ministry's decision.—(5) The principle of 'No work no Pay' should not be circumvented in any way including by grant of leave to a railway servant for the period of absence caused due to participation in a strike.

(No. E(LR) II77 ST 1-126 dt. 15-7-1978.)

Railway Ministry's decision. – (6) If an application for casual leave is presented by a railway servant specifically for the purpose of participation in a demonstration, it is open to the competent authority to refuse casual leave for this purpose. If in spite of refusal, and employee absents himself from duty, he can be treated to have been unauthorisedly absent, with all the attendant consequences of unauthorised absence.

(No. E (G) 79 LE 1-10 dt. 19-6-1980.)

8. Connection with press or other media.---

- (1) No Railway servant shall, except with the previous sanction of the Government, own wholly or in part, or conduct or participate in the editing or management of, any newspaper or other periodical publication or electronic media.
- (2) Nothing in sub-rule (1) shall apply in case a Railway servant in the bonafide discharge of his official duties publishes a book or participates in a public media.
- (3) A Railway Servant publishing a book or participating in a public media shall, at all times, make it clear that the views expressed by him are his own and not that of Government.

(Authority: Railway Board's letter No. E (D&A) 95 GS 1-6 dated 14-9-95)

9. Criticism of Government.—No railway servant shall, in any radio broadcast, telecast through any electronic media or in any document published in his own name or anonymously, pseudonymously or in the name of any other person or in any communication to press or in any public utterance, make any statement of fact or opinion—

- (i) which has the effect of an adverse criticism of any current or recent policy or action of the Central Government or State Government ;
- (ii) which is capable of embarrassing the relations between the Central Government and the Government of any State; or
- (iii) which is capable of embarrassing the relations between the Central Government and the Government of any foreign State:

Provided that nothing in this rule shall apply to any statement made or views expressed by a railway servant in his official capacity or in the due performance of the duties assigned to him.

Railway Ministry's decision.—Serving Railway employees, if they, in their individual capacity or in their capacity of office bearer of association (including federation/unions of railway employees) or editor/publishers office bearers of journals issued by such association (including federation/union) pass resolutions making statement and/or expressing opinion on issues which involve violation by the individual employees of this Rule become liable for disciplinary action.

((E (D&A) 68GS1-6 dot. 24-6-1968.)